

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/21/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: L24-11721
CASE NAME: CRESER CAPITAL FUND VS. MICHELLE FRANCIS
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

Law & Motion

2. 9:00 AM CASE NUMBER: L22-04110
CASE NAME: VELOCITY INVESTMENTS LLC VS. NICOLE MUNOZ
*HEARING ON MOTION IN RE: NOTICE OF MOTION & MOTION TO VACATE VOID JUDGMENT FILED
BY DEF. ON 04/08/2026
FILED BY: MUNOZ, NICOLE

***TENTATIVE RULING**

Defendant filed, on 4/8/26, a Motion to Set Aside Default Judgment. There is no Response, and Defendant has filed proof that they served Plaintiff with notice of the Motion and hearing.

Background

Defendant seeks this ruling from the court under Section 473(d) of the CCP, contending that they were not actually serviced with service of process, and further claiming that there is no time limit within which a defendant can seek relief under this statute.

Defendant specifically claims that they were not served with process because they were not living at the address listed on the proof of service, which was filed by Plaintiff on 2/15/23.

Defendant already attempted to seek relief under the theory of lack of notice but moved for that relief under Section 473.5 of the CCP. That motion was heard by this court on 4/7/26 and denied. This court found that Defendant was time-barred from such relief, since judgment had been entered more than two years before the filing of the motion.

It appears Defendant is making the same claim but is attempting to use a different vehicle.

Analysis

Authority for a court to set aside a default judgment lies in at least two different statutes of the CCP.

Section 473.5 of the CCP permits the court to set aside a default judgment where it finds that the defendant was not given actual notice of the process. There is a limitation within which Defendant can seek relief under this section, however, and that is no later than two years after the entry of the default judgment. (Section 473.5(a) of CCP.)

Section 473 of the CCP also grants this power. When a judgment was not the result of the party's mistake, negligence, inadvertence or surprise, the court can still grant a request to set aside a default judgment if that the judgment is otherwise void. (See Sections 473(b) and 473(d).) While requests hinging on reasons of mistake or inadvertence have time limitations of 180 days, those for a void judgment do not have such a limitation.

However, what renders a judgment void such that it falls within the purview of Section 473(d) is relatively narrow.

"After six months ... an otherwise valid judgment may only be set aside for extrinsic fraud or mistake. Extrinsic fraud occurs when a party is deprived of his opportunity to present his claim or defense to the court, where he was kept in ignorance or in some other manner fraudulently prevented from fully participating in the proceeding. Examples of extrinsic fraud are: concealment of the existence of a community property asset, failure to give notice of the action to the other party, convincing the other party not to obtain counsel because the matter will not proceed (and it does proceed) ... Extrinsic mistake involves the excusable neglect of a party. When this neglect results in an unjust judgment, without a fair adversary hearing, and the basis for equitable relief is present, this is extrinsic mistake. Reliance on an attorney who becomes incapacitated, or incompetence of the party without

appointment of a guardian ad litem, are examples of extrinsic mistake. (*In re Marriage of Varner* (1997) 55 Cal.App.4th 128, 140 (superseded by statute only in matters of family law).)

The only plausible theory for Defendant in the instant matter would be that the lack of actual notice, assuming it is true, resulted in excusable neglect, which qualifies as excusable mistake under Section 473(d), and thus permits Defendant to request a set aside at any time.

But this court finds such a construction of the statute to be incorrect. First, a lack of notice was certainly not one of the examples listed in *Verner*, but more importantly, to lend the statute Defendant's interpretation would be to make CCP 473.5 superfluous. What would be the necessity of CCP 473.5 and its time limitation when a defendant can simply make the identical claim at any time under CCP 473(d)? **This clearly was not the intent of the legislature and would contravene the canons of statutory interpretation.**

This court finds that a default judgment where there was no actual notice to the defendant, but the defendant failed to raise the claim within two years of the date of entry of default, does not qualify as a void judgment under Section 473(d).

Disposition

Defendant's Motion is denied.

Court to issue order.

3. 9:00 AM CASE NUMBER: L24-06648

CASE NAME: LVNV FUNDING LLC VS. GABRIELLA REYNA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT FILED BY PLTF. ON 04/07/2026**

FILED BY: LVNV FUNDING LLC

TENTATIVE RULING:

Background

Plaintiff filed, on 4/7/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The Motion and accompanying documents were served by mail to the address where Plaintiff had served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a

particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$4,312.68, less any credits for payments received.

Default defaulted on the payments.

Defendant made total payments in the amount of \$730.

Costs, an accounting of which was included in the Declaration, totaled \$324.98.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,907.63.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L24-09079

CASE NAME: DISCOVER BANK VS. CIARA OKELLEY

***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed, 12/15/25, a Motion to enter judgment pursuant to stipulation. The Motion was originally scheduled for 4/28/26, but on that date, this court found that Plaintiff had not given proper notice to Defendant and continue the hearing for Plaintiff to provide notice.

The Motion is unopposed, yet, as of this writing, there is no evidence that Plaintiff has provided any notice of the Motion or hearing to Defendant.

Disposition

This is the second motion hearing setting for which Plaintiff has not provided notice.

This Motion will be dropped.

5. 9:00 AM CASE NUMBER: L24-10344

CASE NAME: JPMORGAN CHASE BANK N.A. VS. ROBERT ZAMBRANA

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLTF. ON 04/07/206**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Plaintiff alleges Defendant defaulted on payments per a written agreement.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,041.56, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,124.56.

Defendant defaulted on the payments.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,917.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L24-11721

CASE NAME: CRESER CAPITAL FUND VS. MICHELLE FRANCIS

*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY JULIA A. CLAYTON
(DEF'S COUNSEL) ON 04/01/2026

FILED BY: FRANCIS, MICHELLE

TENTATIVE RULING:

This Motion was continued by counsel for the Defense to 9/1/26, 9am.

7. 9:00 AM CASE NUMBER: L25-01111

CASE NAME: CITIBANK N.A. VS. PETER GILMOUR

*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PTLF. ON
04/07/2026

FILED BY: CITIBANK N.A.

***TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The moving papers were timely served by mail on the address for Defendant provided in the Answer.

The Declaration reflects Plaintiff's attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff in the amount of \$6,894.42. Specifically, the Complaint alleges that Defendant failed to make payments on the contract, that Defendant refuses to pay Plaintiff the amount owed under the contract. Generally, the Plaintiff alleges that they suffered damages.

The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer, admits that all of the statements in the Complaint are true except that he does not know if the balance at issue, of \$6,894.42, as reflected in the Complaint, is correct. He writes, under the section for affirmative defenses, “I do not dispute.”

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, “[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint.” *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she “has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” *CCP 431.30(e)*.

A judge must deny a plaintiff’s motion for judgment on the pleadings if the defendant’s answer raises any material issue or sets up any affirmative matter constituting a defense. *Allstate Ins. Co. V KimW.* (1984) 160 CA3d 326, 330–331.

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

A court can grant a motion for judgment on the pleadings with leave to amend. *CCP 438(h)(1)*. The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235

Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, Defendant admits all of the elements of a breach of contract, the sole cause of action. He admits the existence of damages by offering no denial to Plaintiff’s allegation that he failed to pay an agreed-upon amount, and that they Plaintiff did, in fact, suffer damages. The only matter of dispute raised by Defendant is the amount of damages, not the existence of damages.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted.

This matter will be scheduled for a further hearing for Plaintiff to prove the amount of damages. That hearing will be 9/30/26, 10am.

Plaintiff to file Order and notify Defendant.

8. 9:00 AM CASE NUMBER: L25-02555
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. PAULINE JETTIE
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:
***TENTATIVE RULING**

Background

On 12/22/25, Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed.

Plaintiff timely served Defendant via mail service on counsel of record as of 12/22/26. The court notes that a Change of Attorney form was filed on behalf of Defendant on 1/13/26, but that the new attorney is a member of the same law firm, with the same

address, as the previous attorney. Thus, the court finds proper service.

The Declaration purports to be a statement from a custodian of records at American Express. The statement reflects that all the elements of a breach of contract are established. However, while the affiant of the declaration provides a handwritten signature on the declaration, their name is illegible, and no printed name is offered. The identity of the affiant remains a mystery. This is insufficient as evidence.

Disposition

The Motion will be continued to 9/29/26, 9am.

Plaintiff to provide a Declaration with a legible indication of the name of the person to whom the affiant's signature belongs.

Plaintiff to provide notice of the hearing to Defendant.

Plaintiff to file Order reflecting this ruling.

9. 9:00 AM CASE NUMBER: L25-03457

CASE NAME: CAPITAL ONE, N.A. VS. JESSICA IBARRA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT
PURSUANT TO CCP 6646 FILED BY PLTF. ON 04/07/2026**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation, along with a Declaration and Memo of Costs. The motion was served by mail to the address of Defendant's counsel.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$11,057.28, less any credits for payments received.

The written stipulation was filed with the court.

Defendant defaulted on the payments.

Defendant made total payments in the amount of \$2,147.88.

Costs were 514.51.

Thus, the judgment amount should be \$9,423.91.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$9,423.91.

Plaintiff to file order on Motion, as well as submit Judgment, and provide notice to Defendant.

10. 9:00 AM CASE NUMBER: L25-03538
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. GISELLE GOMEZ
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSANT TO STIPULATION**
FILED BY:
TENTATIVE RULING:

Plaintiff filed a Motion to enter judgment pursuant to stipulation. The Motion was filed on 2/2/6, with a hearing on 4/28/26, but on that date this court found that Plaintiff had not provided notice to Plaintiff, continued the Motion to 7/21/26, and ordered Plaintiff to properly notify Defendant.

As of this writing, there is no evidence that Plaintiff has provided any notice of the Motion to Defendant.

Disposition

This Motion will be dropped.

11. 9:00 AM CASE NUMBER: L25-04747
CASE NAME: JPMORGAN CHASE BANK N.A. VS. DANIEL TOMPKINS
***HEARING ON MOTION TO DEEM MATTERS ADMITTED (CONTINUED FROM 1-20-2026)**
FILED BY:
***TENTATIVE RULING**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), that was originally scheduled for 1/20/26.

On that date, the court ruled that it would give Defendant another thirty days to submit substantially compliant responses to the discovery request.

On 2/17/26, Defendant filed document entitled, Opposition to Notice of Motion for Order ("Response"), and served it on counsel for Plaintiff. This Response contained responses to Plaintiff's requests for admission.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

In this matter, the court finds that Defendant's responses to requests one, and three through seven, are substantially compliant.

The response to request two offers a legitimate objection, in that the request does assume that Defendant in fact applied for the credit account.

Disposition

The court denies Plaintiff's Motion.

The court will file the Order.

12. 9:00 AM CASE NUMBER: L25-10487
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. THU QUACH
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY:
***TENTATIVE RULING**

Defendant filed a Motion to Set Aside Default Judgment, on 2/27/26, that was originally scheduled for 5/12/26. On that date, this court found Defendant had not provided any notice of the Motion to the Plaintiff, continued the Motion to 7/21/26, and ordered Defendant to provide notice to the Plaintiff.

As of this writing, though the Court Clerk provided notice of the hearing to Plaintiff, there is still no evidence that Defendant has provided any notice of the Motion to Plaintiff.

Disposition

This Motion will be dropped.

13. 9:00 AM CASE NUMBER: L25-12718

CASE NAME: WELLS FARGO BANK, N.A. VS. EVA SANTIAGO

*HEARING ON MOTION FOR AN ODR DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLTF'S REQ FOR ADMISSIONS AS ADMITTED FILED BY PLTF ON 04/07/2026

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel of Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

14. 9:00 AM CASE NUMBER: L25-14278
CASE NAME: JPMORGAN CHASE BANK N.A. VS. SUZANNE TRAN
***HEARING ON MOTION IN RE:**
FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$8,775.25, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,775.25.

Plaintiff to file order on Motion, as well as submit Judgment.

15. 9:00 AM CASE NUMBER: L26-01030

CASE NAME: DARIUSH ZANDI VS. DOES 1 TO 20

*HEARING ON MOTION IN RE: MOTION TO QUASH SERVICE OF SUMMONS FOR LACK OF
PERSONAL JURISDICTION FILED BY DEF ON 04/07/2026

FILED BY: PIROOZ, SINA SALEHI

***TENTATIVE RULING**

This matter will be continued to 9/22/26, 9am.

The court will provide notice.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: MS26-0344

CASE NAME: SUNNY BEHL VS TUYETNGA HUYNH

JURY TRIAL

FILED BY:

TENTATIVE RULING: